PROPERTY MANAGEMENT AGREEMENT

Lockwood Eastlake Mixed-Use Center | Albuquerque, NM

Owner	Lockwood Eastlake Mixed-Use Center Owner LLC
Manager	Orion Commercial Management
Property	Lockwood Eastlake Mixed-Use Center, 6010 Centennial Drive, Albuquerque, NM 11357
Agreement Date	May 19, 2021

1. Appointment. Owner appoints Manager as the exclusive managing agent of Lockwood Eastlake Mixed-Use Center, and Manager accepts the appointment under the terms of this Agreement. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

3. Management Fee. Manager shall receive a monthly management fee equal to 6.7% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

7. Spending Authority. Manager may incur expenses not exceeding $224,000 individually without Owner approval, except in an emergency threatening life or property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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8. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

9. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

10. Appointment. Owner appoints Manager as the exclusive managing agent of Lockwood Eastlake Mixed-Use Center, and Manager accepts the appointment under the terms of this Agreement. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

11. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

12. Management Fee. Manager shall receive a monthly management fee equal to 5.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

13. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

14. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

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15. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

16. Spending Authority. Manager may incur expenses not exceeding $268,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM.

17. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

18. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

19. Appointment. Owner appoints Manager as the exclusive managing agent of Lockwood Eastlake Mixed-Use Center, and Manager accepts the appointment under the terms of this Agreement. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

20. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

21. Management Fee. Manager shall receive a monthly management fee equal to 5.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Lockwood Eastlake Mixed-Use Center Owner LLC

By: Chloe Evans Title: Managing Member Date: 05/19/2021

_____

Northstar Wine Bar

By: Brian Bennett Title: Manager Date: 05/19/2021

Exhibit A - Property

Lockwood Eastlake Mixed-Use Center, 6010 Centennial Drive, Albuquerque, NM 11357. Parcel containing approximately 26.19 acres, together with all improvements thereon.

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